

**BEFORE THE
FEDERAL MARITIME COMMISSION**

**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,**

Vs.

**MAERSK LINE A/S,
JOHN DOES,
Respondents.**

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DOCKET #:

20-17

**COMPLAINANT’S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS
TO RESPONDENT**

TO: Garth S. Wolfson, Esquire
Mahoney & Keane, LLP
61 Broadway, Suite 905
New York, New York 10006

Pursuant to the Scheduling Order of May 13, 2021, Complainant, Marie Carew d/b/a Holiday Shipping (“Holiday”), propounds the following Requests for the Production of Documents and Things to Respondent Maersk Line A/S. In accordance with Rule 26(e) of the Federal Rules of Civil Procedure, these Requests shall be deemed to be continuing if Respondent discovers further documents or things responsive hereto, Respondent should promptly produce such documents or things to Complainant.

DEFINITIONS AND INSTRUCTIONS

1. Complainant incorporates by reference the applicable Definitions and Instructions from Complainant’s First Set of Interrogatories to Respondent.

2. “Respondent” shall refer to Maersk Line A/S, its associates, agents, subsidiaries, representatives regardless of the location or whereabouts of such individual or agents.

3. “Complainant” shall refer to Marie Carew d/b/a/ Holiday Shipping, and includes, but is not limited to, any predecessors or successors, and any agents, attorneys, representatives, employees, and/or other persons acting on their behalf.

4. “FMC” shall mean the Federal Maritime Commission, and includes, but is not limited to, any predecessor or successor agencies, and any divisions, departments, affiliates, agents, attorneys, representatives, employees, and/or other persons acting on its behalf.

5. “Person” or “persons” shall mean an individual, corporation, proprietorship, partnership, association, or any other entity.

6. The term “document” shall have the broadest meaning possible under the Federal Rules of Civil Procedure and shall include, but not be limited to, the original (or a copy when the original is not available) and each non-identical copy (including those which are non-identical by reason of translations, notations, or markings) or any and all other written, printed, typed, punched, taped, filmed, or graphic matter or recorded or tangible thing, or whatever description, however produced or reproduced (including computer-stored or generated data, together with instructions or programs necessary to search and retrieve such data and hard copies where available and retrievable), and shall include all attachments to and enclosures with any requested item, to which they are attached or with which they are enclosed, and each draft thereof. The term document shall specifically include all recorded or retrievable electronic data or communications such as electronic

mail (e-mail) and the like and all translations thereof.

7. The term “thing” refers to any tangible object, other than a document, and includes objects of every kind and nature, including, but not limited to, prototypes, models, and specimens.

8. “Communication” means any oral, written, electronic, or other exchange of words, thoughts, information, or ideas to another person or entity, whether in person, in a group, by telephone, by letter, by Telex, by facsimile, or by any other process, electric, electronic, or otherwise. All such communications in writing shall include, without limitation, printed, typed, handwritten, or other readable documents, correspondence, memoranda, reports, contracts, drafts (both initial and subsequent), computer discs or transmissions, e-mails, instant messages, tape or video recordings, voicemails, diaries, log books, minutes, notes, studies, surveys and forecasts, and any and all copies thereof.

9. The words “or,” “and,” “all,” “every,” “any,” “each,” “one or more,” “including,” and similar words of guidance, are intended merely as such, and should not be construed as words of limitation. The words “or” and “and” shall include each other whenever possible to expand, not restrict, the scope of the Request. The word “including” shall not be used to limit any general category or description that precedes it. The words “all,” “every,” “any,” “each,” and “one or more” shall include each other whenever possible to expand, not restrict, the scope of the Request.

10. Reference to the singular in any of these Requests shall also include a reference to the plural, and reference to the plural also shall include a reference to the singular.

11. These Requests are intended to elicit as much information as possible

concerning the issues, and to the extent any Request could be interpreted in more than one way, you should employ the interpretation of the Request most likely to encompass and elicit the greatest amount of information possible.

12. If Respondents refuse to disclose any of the documents or things requested in any of these Requests on the basis of a privilege or other protection, please so state, and further state the basis of the privilege or other protection claim with sufficient specificity to permit the Court and counsel to evaluate and test the privilege or protection claimed, pursuant to Fed. R. Civ. P. 26(b)(5).

REQUESTS FOR PRODUCTION

REQUEST NO. 1

Produce any and all documents that each of the Consignees listed in Paragraph 7 of the Definition Section of Complainant's First Set of Interrogatory to Respondent presented to the Release Counter of Maersk Line in Nigeria.

REQUEST NO. 2

Produce any and all documents representing all invoices, either paid or still outstanding for each of the four (4) bills of lading.

REQUEST NO. 3

Produce any and all other form of correspondence and/or communications exchanged between each of the Consignees listed in Paragraph 7 of the Definition Section of Complainant's First Set of Interrogatory to Respondent with your agents, representatives, or subsidiaries in Nigeria. This request includes letters, emails, notes and other documentations in your possession or the possession of your subsidiaries in Nigeria.

REQUEST NO. 4

Any and all documents in your possession that has not been specifically requested, but relevant to your responses, defenses, and/or rebuttal of herein claims.

This the 2nd day of June, 2021.

Respectfully submitted,

/s/ Yinka Omole

Yinka T. Omole, Esq.

Attorney for Complainant

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